



STANDING ORDER NO. Lic.& Leg./28/2022

GRANT OF LICENCE/NO OBJECTION CERTIFICATE FOR PERMANENT FIREWORKS SHOPS

INTRODUCTION

This Standing Order aims to lay down rules and procedures related to grant of Permanent Licence for fireworks shops and No Objection Certificate for fireworks shop whose licence is to be granted by the Joint Chief Controller of Explosives, North Circle, Faridabad, Haryana.

1. DERIVATION OF POWERS

As per section 146 (i) of the Delhi Police Act, 1978, the Commissioner of Police is empowered to exercise all powers which may be exercised by District Magistrate under the Acts mentioned in Schedule I, and the rules made there-under, which include the Explosives Act, 1884 and the Explosives Rules 2008 (As amended in 2019).

Therefore, all the powers vested in the 'District Authority' as mentioned in the Explosives Act, 1884 and the Explosives Rules, 2008 are to be exercised by the Commissioner of Police, Delhi, or by the Joint/Addl. Commissioner of Police, Licensing on his behalf under delegated powers, in case of Permanent Fireworks Licences/No Objection Certificates.

Therefore, the permanent fireworks licences are to be granted by Licensing Authority up to a quantity of maximum of 100 kg of manufactured fireworks (Class-7, Division-2, Sub-Division-2), which, in the opinion of Chief Controller, present a special hazard to a person, e.g. rocket shells, maroons, wheels, barrages, fountains, illumination pieces, distress signals, pyrotechnic devices etc.) and 500 kg of Chorsa crackers/ sparklers (Class-07, division-2, Sub-Division-1) which in the opinion of Chief Controller, are relatively innocuous in themselves and not liable to explode violently or all at once e.g. sparklers (Chorsa crackers, serpents etc.) as per Schedule I of Explosives Rules, 2008, as amended in 2019.

The licences for quantity exceeding 100 kgs of manufactured fireworks and 500 kgs of Chorsa sparklers/crackers are granted by the Joint Chief Controller of Explosives, Faridabad Haryana after receipt of No objection certificate issued by the Joint/Addl. Commissioner of Police, Licensing Delhi. Thereafter all the subsequent actions will be taken by Petroleum and Explosives Safety Organisation (PESO).

2. CONDITIONS

Grant of Permanent fireworks licences/No Objection Certificate shall be so regulated that no fire accidents / incidents resulting in injury and loss of human life takes place. This should be done in accordance with the provisions of The Explosives Act, 1884, The Explosives Substances Act, 1908, The Explosives Rules, 2008, directions & guidelines of Hon'ble Supreme Court of India, the Explosives Department, Government of India, the Fire Department and the Environment Department, Government of NCT Delhi and other conditions as given below:

- i. Licences shall be granted only for a shop located on a commercial street or in a commercial shopping centre, as per the Master Plan Delhi- 2021 in accordance with Section 15.5 & 15.6.2 and 15.6.3. The list of notified commercial areas is given in supplement to MPD-2021.
- ii. Minimum floor area required is 9 sq. metres and maximum floor area is 25 sq. metres.
- iii. No person below the age of 18 years and no person who is addicted to intoxication or of unsound mind shall be granted a licence.
- iv. The shops shall only be located on the ground floor of a building completely separated from other parts of the building by substantial walls.
- v. The shop shall not be situated in the sub level or basement or mezzanine floor.
- vi. The shop shall not be situated under the upper floor used for the purpose of dwelling.
- vii. The shop shall not be situated under or nearby any staircase or lift.
- viii. The licenced premises must have an independent entrance and exit. However, in Babu Lal and Others Vs DCP Licensing and others, the Hon'ble Supreme Court of India has ruled - "Normally shops have

an opening which is used both for entry and exit - that it does not open into any other premises is what is important so that in event of any difficulty there is a way out."

- ix. The shops should have doors opening outwards. Alternatively, the doors may be provided with rolling shutters, but the same must be provided with stoppers, which must be functional.
- x. The road width in front of the shop must be a minimum of 12 metres, thus making it accessible for firefighting.
- xi. The shop shall be at a distance of minimum 15 metres from any shop or premises used for storage of similar explosives, flammable or hazardous materials.
- xii. The shops should have no electrical apparatus or battery or oil lamp or similar equipment capable of producing spark or ignition and all electrical wiring in the shop should be fixed and effectively sealed or conducted or mechanically protected. The main switch or circuit breaker should be provided at the immediate accessible position outside the premises.

3. DOCUMENTS TO BE SUBMITTED FOR OBTAINING LICENCE/NOC (ALL IN FIVE SETS):

- i. Application form (Form No. AE-5 as per Rule 113) of the Explosive Rules, 2008, (Copy of the form enclosed at **Annexure-A**).
- ii. Prescribed affidavit along with self attested photographs attested by the notary along with the documents. (Copy of the affidavit enclosed at **Annexure-B**).
- iii. Two photographs of the applicant, which are self-attested.
- iv. Site plan of the premises: - The site plan should clearly show the approach road, electric wiring network, nearby structures and distances from nearby protected works as well as telephone junctions, transformers etc.
- v. Photograph of the premises from all directions depicting the clearance from other shops of similar nature, if any.
- vi. Proof of residence.
- vii. Proof of ownership of the proposed shop.

- viii. In case of a rented shop, NOC from the landlord along with the rent agreement on the affidavit duly attested by the notary public/civic agency with photographs of the landlord and the tenant.
- ix. A scrutiny fee of Rs. 200/- in cash (non-refundable) payable to the Addl. Commissioner of Licensing, Delhi at the cash counter of Licensing Unit.

4. PROCEDURE FOR GRANT OF LICENCE:

- i. The application form for the permanent fireworks licences shall be available free of cost in the office of Joint/Additional Commissioner of Police, Licensing, Delhi in the prescribed format. It shall also be made available for download on the website of Delhi Police Licensing Unit i.e. www.delhipolicelicensing.gov.in
- ii. The application form duly filled along with all the required documents will be submitted at the Office of Joint/Additional Commissioner of Police, Licensing.
- iii. A register will be maintained listing out the date of receipt of each application and each application has to be given a specific number.
- iv. All the documents will be scrutinized as per the Check List (**Annexure-C**).
- v. The following NOCs shall be sought to adjudge the suitability of place and applicant to carry out the trade: -
 - a) **NOC from Fire Department:** to ascertain suitability of place from fire safety point of view in the interest of public safety at large and availability of the fire safety arrangements.
 - b) **NOC from Land Owning Agency:** like MCD/DDA/NDMC/DUSIB/Delhi Cantonment Board to ascertain that the location of the shop/premises in the Commercial Street or commercial shopping centre as per Master Plan Delhi-2021 or any objection, if any, from municipal by-laws/land regulation point of view as per **Annexure-D**.
 - c) **NOC from Local Police:** to ascertain suitability of the site from law and order point of view, verification of the antecedents of the applicant and verification of the documents submitted by the applicant on the proforma (**Annexure-E**).

- vi. After receipt of above reports, inspection of the premises shall be conducted by an officer of the Licensing unit as per **Annexure-F**.
- vii. All the above reports shall be put up to Joint/Addl. CP/Licensing. In case, all the reports are received, the Licensing Authority shall decide the issuance of Licence for category under the purview of Licensing Authority and issue NOC for category under the purview of Joint Chief Controller of Explosives, Faridabad.
- viii. The licence after due approval shall be issued as per **Annexure-G**, which may be up to 5 years. A licence fee of ₹ 600/-per annum shall be charged through Debit/Credit Card (non-refundable) payable to the Joint/Addl. Commissioner of Licensing, Delhi or as may be fixed from time to time by Department of Industrial Policy and Promotions as user fee while granting the licence.
- ix. A copy of the licence along with approved drawings granted by the office of Joint/Additional Commissioner of Police, Licensing, Delhi shall be forwarded to the Joint Chief Controller of Explosives, Faridabad, Haryana as per the Rules (Section 107 (7) of the Explosives Rules-2008).
- x. The Joint/Additional Commissioner of Police, Licensing while refusing to grant licence shall record in writing the reasons for such refusal and communicate the same to the applicant on the format as per **Annexure-H**. The applicant shall be given an opportunity of being heard before a decision to refuse the licence is taken. (Rule 114 of Explosives Rules, 2008)
- xi. **APPEAL:** An appeal against the order of the Joint/Additional Commissioner of Police, Licensing, Delhi refusing to grant a licence or suspending or revoking a licence or varying the condition of a licence shall lie, with Special Commissioner of Police, Licensing Division, who will decide the appeal (Rule 121 & 122 of the Explosives Rules-2008). A fee of Rs. 300/- shall be deposited either in cash or through Demand Draft. In case the appeal is upheld by the appellate authority, the fee shall be refunded to the appellant.

5. PROCEDURE FOR RENEWAL OF LICENCE:

- i. The licence granted by District Authority (Joint/Addl. CP/Licensing) shall be renewed every five years.
- ii. Every application for the renewal of licence shall be made so as to reach the Licensing Authority to renew the licence on or before the date on which the licence expires and if the application is so made, the licence shall be deemed to be in force until an intimation that

the renewal of the licence is refused, has been communicated to the applicant (as per Rule 112, of the Explosives Rules-2008)

- iii. No licence shall be renewed if the application for renewal is received by the licensing or renewing authority after three months of the date of its expiry.

6 PROCESSING TIME:

On receipt of all the required documents, NOCs shall be sought from the concerned department/Units within a week. On receipt of NOC from all the departments/units, inspection shall be conducted within 15 days and final decision shall be taken within a month by the Licensing Authority.

7. CONDITIONS REGARDING POLLUTION:

The conditions as envisaged under of Explosives Rules, 2008 shall be adhered to by the Licencees and the local police will ensure the same. Apart from the above conditions the following safety measures shall also be ensured:-

The directions passed by the Hon'ble Supreme Court of India in the matter of Arjun Gopal And Ors Vs. Union of India and others in Writ Petition (Civil) No. 728 Of 2015, Dated 03.10.2018, shall be complied with till the further direction, if any, by the Apex Court:

a) Direction of the Hon'ble Supreme Court Of India in Writ Petition (Civil) No. 728 Of 2015, Dated 3.10.2018:

- (I) The crackers with reduced emission (improved crackers) and green crackers, as mentioned below in Suggestion Nos. (ii) and (iii) only would be permitted to be manufactured and sold.
 - (ii) Use of Reduced Emission firecrackers (Improved crackers) - (a) Avoidance of use of ash as desiccant or filler materials in crackers for reduction in particulate matter by 15-20%. These can be implemented subject to approval by PESO, and (b) usage of charcoal meeting specifications of explosives and pyrotechnics as prescribed by PESO.
 - (iii) Use of Reduced Emission firecrackers (Green crackers: Safe water and Air Sprinklers (SWAS) - Low emission sound and light emitting functional crackers with PM reduction by 30-35% and significant reduction in NOx and SO2 due to in-situ water generation as dust suppressant and low cost

due to usage of low cost oxidants. These can be implemented subject to approval by PESO.

- (II) As a consequence, production and sale of crackers other than those mentioned in aforementioned suggestion Nos. II and III is banned.
- (III) The manufacture, sale and use of joined firecrackers (series crackers or laris) is banned as the same causes huge air, noise and solid waste problems.
- (IV) The sale shall only be through licensed traders and it shall be ensured that these licensed traders are selling those firecrackers which are permitted by this order.
- (V) No e-commerce websites, including Flipkart, Amazon etc., shall accept any online orders and effect online sales. Any such e-commerce companies found selling crackers online will be hauled up for contempt of court and the Court may also pass, in that eventuality, orders of monetary penalties as well.
- (VI) Barium salts in the fireworks is also hereby banned.
- (VII) PESO has been directed to review the clinical composition of fireworks, particularly reducing Aluminum content.
- (VIII) Even those crackers which have already been produced and they do not fulfil the conditions mentioned in Suggestion Nos. II and III above will not be allowed to be sold in Delhi and NCR.
- (IX) PESO will ensure fireworks with permitted chemicals only to be purchased/possessed/sold/used during Diwali and all other religious festivals, of any religion whatsoever, and other occasions like marriages, etc. It shall test and check for the presence of banned chemicals like Lithium/Arsenic/ Antimony/Lead/Mercury.
- (X) PESO will ensure suspension of the licenses of manufacturers of such fireworks items and appropriate disposal of such stock.
- (XI) PESO will ensure that only those crackers whose decibel (sound) level are within the limits are allowed in the market and will ensure to take action by suspending the licenses of the manufacturers on such violations and disposal of such lots. To add to it, as mentioned in the order dated September 12, 2017, the directions issued and restrictions imposed in the order passed by this Court on July 18, 2005 in Noise Pollution (V) shall continue to be in force.

- (XII) Direction Nos. 4 to 9 and 11 contained in the order dated September 12, 2017 shall continue to operate and are reiterated again.
- (XIII) Extensive public awareness campaigns shall be taken up by the Central Government/State Governments/Schools/ IAs in Writ Petition (Civil) No. 728 of 2015 & Ors. Page 50 of 54 Colleges informing the public about the harmful effects of firecrackers.
- (XIV) On Diwali days or on any other festivals like GURPURAB etc., when such fireworks generally take place, it would strictly be from 8:00 p.m. till 10:00 p.m. only. On Christmas Eve and New Year eve, when such fireworks start around midnight, i.e. 12:00 a.m., it would be from 11:55 p.m. till 12:30 a.m. only.
- (XV) The Union of India, Government of NCT of Delhi and the State Governments of the NCR would permit community firecracking only (for Diwali and other festivals etc. as mentioned above), wherever it can be done. For this purpose, particular area/fields would be pre-identified and predesignated by the concerned authorities. This exercise shall be completed within a period of one week from the date of this order so that the public at large is informed about the designated places one week before Diwali. The areas designated now for the purpose of Diwali shall be valid for community firecracking on other occasions/festivals as well, as mentioned above. Even for marriages and other occasions, sale of improved crackers and green crackers is only permitted
- (XVI) All the official respondents, and particularly the Police, shall ensure that fireworks take place only during the designated time and at designated places, as mentioned above. They shall also ensure that there is no sale of banned firecrackers. In case any violation is found, the Station House Officer (SHO) of the concerned Police Station of the area shall be held personally liable for such violation and this would amount to committing contempt of the Court, for which such SHO(s) would be proceeded against.
- b) Firecrackers shall not be used at any time in silence zones, as defined in S.O. 1046 (E) issued on 22.11.2000 by the Ministry of Environment and Forests. In the said Notification, Silence Zone has been defined as: "an area comprising not less than 100 meters around hospitals, educational institutions, courts, religious places or any other area which is declared as such by the competent District DCP."

8. DO'S & DON'TS FOR LICENCEES AND RESPONSIBILITY OF LOCAL POLICE:

- i. At least 4 sand bags must be kept in the premises. Additional sand bags depending upon the size of the premises are also required to be kept.
- ii. Rule 6 (A) Every licensed premises under these rules shall prominently display a "No Smoking" board in local language and in English along with display of " No Smoking" signage..
- iii. At least two or more fire extinguishers of liquid/water CO2 type of 9 ltrs capacity each of ISI mark should be installed in the premises in sound working condition.
- iv. The use of crackers and smoking should not be allowed near the sale area i.e. within 50 mtrs area from the shop.
- v. Fire Hydrants should be located in the selected areas with the help of Licencees. The Fire Department & Delhi Jal Board may be associated to ensure that the location is satisfactory, adequate water pressure is maintained and is usable when it is required.
- vi. Electricity supply companies like BSES/NDPL & Delhi Transco Co. etc. should be requested by the local police from time to time to check overhanging of electricity wires for ruling out the possibility of any short circuit and spark in the areas where fireworks shops are situated.
- vii. Fireworks shall not be placed or kept in a shop window used for display of goods.
- viii. Fireworks shall be kept in a spark proof receptacle or the original outer pocket in which they were received if that package is effectively sealed and in good order and condition.
- ix. A receptacle or package containing fireworks shall be kept in a position away from and clear of shop traffic and to be separated from all articles of a flammable or combustible nature.
- x. Where a package containing fireworks is opened for sale, the fireworks shall immediately be placed in a clean, dust free & spark proof receptacle.

- xi. Any additional CFL or decorative lights with loose and hanging wire at the licenced premises shall not be displayed.
- xii. No licensee shall sell the fireworks from the pavement or any place outside of shop. Neither any licensee shall encroached the pavement or the abutting road with the goods/fireworks boxes of his shop nor will he place any sale counter on the pavement or the road.

9. PROSECUTION:

- i. All the Districts & PCR will maintain a record of the fire accidents in the shops/premises of fireworks. Necessary intimation about the above shall be sent to the Licensing Branch, Delhi Police as well as Joint Chief Controller of Explosive, Department of Explosives, GOI, Hall No. 502 & 507, B-Block, Old CGO Complex, NH-4, Faridabad, Haryana, immediately.
- ii. Necessary legal action against any person found in possession or selling explosives/fireworks without a licence as required under rule 88 of the Explosive Rules, 2008 shall be taken by the local police in accordance with section 9 (b) of the Explosives Act, 1884.

It has been observed in the past that if not checked regularly, violation of conditions laid down as per Explosives Rules as well as other conditions imposed by the Licensing Authority, are committed by the licensees. It shall be duty of the concerned district DCsP to ensure that all the laid down conditions are abided by the licensees on the ground and action is initiated as soon as any violation is noticed. It shall be onerous duty of district police to ensure that no mishap occurs and area is kept safe and secure from any fire hazard.

10 SUPERSESSION CLAUSE:

This Standing Order supersedes previous Standing Order No.407/12 issued vide No.2016-2131/RB/PHQ dated 08-08-2012.

11. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.



(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI. 23.5.22 ✓

No. 25151-25300 Record Branch/PHQ dated Delhi, the 28/5/22

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.

FORM AE-5

(See rule 113 of the Explosive Rules, 2008)

Application for approval or grant or amendment or transfer of licence in Form LE-5 as per article 5(a) to (f) of part 1 of Schedule IV.

I _____ on behalf of _____ apply for approval or grant or amendment of licence for the following purpose.

1. Purpose: (Write the purpose corresponding to particular article as per Schedule IV, Part I)
2. Name : I require licence in the following name and postal address:
 - a) Name in which licence is required to be granted (see notes below)
 - b) Status(1)
 - c) Age(2)
 - d) Postal address :

City_____ District_____ State_____ Pin Code_____

_____ Police Station_____ Railway Station/Steamer

Ghat_____

Phone_____

E-Mail_____

Fax_____

3. The proposed premises are situated at the following address :

SurveyNumber_____ City_____ District_____ State_____

Pin Code_____ Police Station_____ Railway Station/Steamer

Ghat_____

_____ Phone_____ E-Mail_____ Fax_____

4. Explosives proposed to be possessed:

S.No.	Name and Description	Class	Division if any	Quantity	at any one time
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I

ii

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5. If the explosives are to be used, furnish the particulars related to the purpose of use
6. Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of Criminal Procedure, 1973, during the last 10 years. If yes, please give details
7. (a) Particulars of other licences under Explosive Act, 1884 if any held by the application during the last 10 years. Yes/No
(b) Was any licence cancelled or not renewed?
(c) If yes, give details

I hereby certify that the above particulars given by me are correct.

Date

Signature of the applicant
(Authorized person in case of a Company)

Full Name
Address

Notes:

Please see the rule for the purpose and documents to be enclosed.

- (1) In case where application is made by a person other than an individual, the names and addresses of the occupier as per rule 2 and directors or partners or members, as the case may be, and specimen signatures of authorized person to be attached.
- (2) Passport size photographs of the occupier to be attached.
- (3) Any change in the above information should be immediately communicated to the licensing authority and authority renewing the licence.
- (4) Age to be given in case the applicant is an individual.
Statutory Warning: Mishandling and misuse of explosives shall constitute serious criminal offence under the law.

Annexure – B

Affix self-
attested
photo

Affidavit

(For the grant of permanent fireworks license)

Specimen of affidavit to be submitted Self-attested on non-judicial stamp
paper of Rs. 10.

I/We, _____ Son/Daughter/Wife of _____ presently
residing at _____ since _____ do hereby solemnly
affirm and declare as follows: -

1. That my date of birth is _____ day _____ month _____ year
_____ (attach proof of birth).
2. That I am permanent resident of _____
_____ (attach
proof of residence).
3. That I am medically fit. (attach a medical certificate issued by a
registered MBBS Doctor).
4. That my nominee shall be Shri/Smt. _____ who is
my _____ (relationship) and residing at _____
_____.
5. That I have applied for permanent fireworks license at the
proposed _____ premises located _____ at
_____ (attach proof).
6. That I am/was not involved in any criminal case.
7. That I have never been externed from my place of stay by any
judicial authority and neither am I a proclaimed offender of any
State Govt. or of Delhi Police, and to the best of my knowledge
there is no Red Corner Notice or any other Look Out Notice
pending against me.
8. That I have no proceedings/cases instituted against me in the,
CBI, NCB, Enforcement Directorate, Directorate of Revenue
Intelligence, Income Tax and Forest Department.

9. That I have not been arrested, deported or involved in any illegal act in any other country where I have visited or resided.
10. That I have no other permanent or temporary fireworks license already issued/applied for. (if yes, give details and attach documents in this regard).
11. That I have applied for permanent fireworks license previously _____ times. (if yes, enclose copy of earlier fireworks license issued in favour of the applicant or the proposed premises.)
12. That the proposed shop is located on a commercial street or in a commercial shopping centre as per Master Plan Delhi-2021 (attach proof thereof). The sketch of the premises prepared by a draftsman is attached. Proof of ownership (tenancy in case of rented/leased premises) is attached. This has a minimum floor area of 9 Sq. Mtr. and maximum floor area 25 sq. Mtr. with pucca construction and it is not under or nearby any staircase/exit or lift. This has independent entrance and exit.
13. I have also attached self-attested two photographs and receipts of applicable scrutiny fee of my application for permanent fireworks licence.
14. There is no other fireworks shop, inflammable or hazardous materials or overhead high tension power lines within a distance of 15 mtrs. from my pucca shop.
15. No other items shall be kept/sold other than fire crackers in the shop.
16. The electric fitting of the shop is through conduit/concealed so that it shall be spark free.
17. The road width on the side of the premises is more than 12 metres with entry and exit facing the road.
18. That I will make requisite arrangements for keeping the stock of fire crackers in safe place and to avoid access of children and other unauthorized persons to the fire crackers in the larger public interest.
19. That I require a permanent fireworks license because (Give full justification) _____

_____.

20. I shall always keep all fire safety arrangements and I will be liable for any mishappening.
21. That I shall not employ children/juvenile in the shop.
22. I will ensure that the upper floor of the shop is not used as a dwelling unit.
23. That I shall abide by the provisions of *The Explosives Act, 1884*, *The Explosives Substances Act, 1908*, *The Explosives Rules, 2008*, directions & guidelines of the Hon'ble Supreme Court of India passed in the matter of Arjun Gopal And Ors Vs. Union of India and others In Writ Petition (Civil) No. 728 Of 2015, Dated 03.10.2018, the Explosives Department, Government of India, the Fire Services Department and the Environment Department, Government of NCT of Delhi issued from time to time.

DEPONENT

I _____ son/daughter of _____ hereby declare that the information provided above is true and correct to the best of my knowledge, information and belief. I fully understand the consequence of giving false information. If the information as given above is found to be false, I shall be liable to prosecution and punishment under section 199 and 200 of IPC 1860 and/or any other law applicable thereto.

DEPONENT
Signature

Annexure – C

CHECK LIST

SL No	Document	Yes/ No	Remarks
1.	Application form (Form AE-5 as per Rule 113 of the Explosive Rules, 2008, Copy of the form enclosed at Annexure-A)		
2.	Prescribed affidavit attested by the notary along with the documents. Copy of the affidavit enclosed at Annexure-B)		
3.	Two self attested photographs of the applicant		
4.	Site plan of the premises. The site plan should clearly show the approach road, electric wiring network, nearby structures and distances from nearby protected works as well as Telephone junctions, Transformers etc. It should also depict the clearing distance from other temporary sheds giving the picture of the whole locality so that the site is clear for each individual site in conjunction with other sites.		
5.	Photograph of the premises from all directions depicting the clearance from other shops of similar nature, if any		
6.	Proof of residence		
7.	Proof of ownership / tenancy in case of rented premises with rent agreement and NOC from the land lord		
8.	Partnership deed along with property papers (in case of partnership case)		
9.	2 ID Proof i.e. Aadhar Card, PAN Card & Residence proof.		
10.	Bank Certificate details in respect of Current Accounts of the Firm		

11.	GST Registration.		
12.	Medical Certificate		
13.	Any temporary/permanent fireworks licence issued earlier in favour of the applicant or the proposed premises		
14.	Fire NOC.		
15.	Land owning agency NOC		
16.	Local Police NOC		
17.	A scrutiny fee of Rs. 300/- and Rs. 600/- per year as license fee through Debit/Credit Card (non-refundable) payable to the Joint/Addl. Commissioner of Licensing, Delhi or as applicable at the time.		

Annexure – D

**FORMAT OF NOC TO BE ACCEPTED FROM THE LAND OWNING
AGENCY i.e. MCD/DDA/NDMC/DCB/DUSIB**

Letter No.

Address of the Premises:

Inspection Proforma

Sr. No.	Points	Remarks
1	Whether the shop/premise falls in the category of commercial area as per MPD-2021	
2	Whether the shop/premises is as per the provisions of Municipal by laws.	
3	Whether the site falls in the category of illegal encroachment/demolition plan	
4	Whether the shop/premise is as per building by-laws	
5	Any other remarks :-	

Signature of the NOC Issuing Officer (with seal)

Name:

Designation:

COPY FOR POLICE VERIFICATION

Part-A Particulars of Applicant

1. Full Name: _____
2. Aliases, if any: _____
3. Father's Name _____
4. Date of Birth : _____
5. Temporary Address, Mention clearly whether tenant:

6. Permanent Address (Same as in Election Card/Ration Card):

Residing since: _____
7. Duration of Stay: - at permanent address : _____
at temporary address : _____
8. Occupation (Profession/Business/Govt./Private Service/Doctor etc.)_____
Telephone No _____Income Tax/PAN No. _____
9. (a) Explosive proposed to be possessed and sold

(b) Name and Description and quantity

10. Name of nominee, relationship and address_____
11. Addresses and Date of Birth verified give details_____
12. Occupation of the applicant as verified give details _____

13. Whether any complaint filed against the applicant? If yes give details_____
14. Involvement in criminal cases? If yes, give details:-_____
15. Whether arrested in any criminal cases? If yes, give details

16. Whether convicted in any criminal? If yes, give details_____
17. Whether acquitted in any criminal case, if yes what are the grounds (As per the details of register No.9 of P.S) give details

18. Whether preventive proceedings initiated to bound down the applicant for keeping good behavior under CrPC & D.PAct

19. Does the applicant figure on the BC list of the police station (as per details of register No.10 of the police station)? If yes give details_____
20. Does the name of the applicant figure in Register No. 17 of P.S.? if yes give details _____
21. Has the applicant been involved in cases with any other agency like CBI, Narcotics Control Bureau, D.R.I, Enforcement Directorate etc., which is in the knowledge of the SHO vide D.D entries of the P.S.for service of summons, execution of warrants etc.? if yes give details
22. Has the applicant filed any complaint regarding threat to his life or his family? If yes, give details_____
23. Verification of nominee (if any)

24. Any other remarks_____

Signature of SHO
(Write Full Name, Date and affix stamp)

INSPECTION PROFORMA

Fireworks shops (Permanent).

1. M/s _____
2. Name (s) of the proprietor / partners _____
3. Contact Numbers _____
4. Fireworks Licence No. _____ (to be) / issued by _____
5. Date & time of inspection _____
6. Quantity authorized Fireworks _____ Sparklers _____
7. Quantity found-- Fireworks _____ Sparklers _____
during checking/(or applied for in case of fresh licence application)
8. Fire safety requirements for premises involving sale/storage of fireworks Remarks
 - a) Number of Fire extinguishers _____
 - b) Number of sand bags available _____
 - c) Number of Water Buckets available _____
 - d) Minimum floor area (9 sq. mtr or less) _____
 - e) Maximum floor area (25 sq. mtrs or excess) _____
 - f) Any other premises within 15 mtrs used for similar explosives /flammable or hazardous material, if so, licence number with details of premises _____
 - g) Type of Electric wiring and electric fitting _____
(Conduit/concealed /Spark proof/Loose)
 - h) Any other trade/mercantile along with fireworks, if so, the details thereof _____
 - i) Any Child labour _____
09. Whether the premises/shop is located on a commercial street or in a commercial shopping centre as per Master Plan Delhi-2021 _____

10. Construction features:-

- a) Whether shop is under staircase/means of exit _____
- b) Whether shop is only at ground floor _____
- c) Whether shop has independent entrance and exit _____
- d) Whether shop is used only for possession and sale of fire works and not used for other purposes _____
- e) Whether the shop has pucca construction.
- f) Whether upper floor are used for dwelling _____

11. Signage Board like No Smoking Board/
Yes/No

DO's & DON'T's displayed or otherwise.

Yes/No

12. Noise level mentioned on fireworks packets or not
Yes/No

13. Encroachment on pavement
Yes/No

(In case of yes, please mention what type of encroachment)

14. Any other discrepancy noticed _____

In case of any discrepancy noticed, whether local police informed or otherwise.

If so, D. D. No. _____ dated _____ P.S. _____

Signature of Inspecting Officer,

Points for inspection:

- 1. The premises/shops/sheds in which such licences are to be granted should be strictly prohibited from selling other items / articles.
- 2. The premises should be accessible by fire tenders and their hosepipes.

3. There should be no loose electric wiring in the premises. No oil lamps/gas lamps or naked light shall be used.
4. Shops should have independent entry/exit.
5. No sale of fireworks will be allowed on footpath/pavement.
6. Explosives should not be hawked, sold or exposed for sale on any highway, street, public thoroughfare or public place.
7. Display of fireworks shall not be allowed within 50 metres of any shop of premises.

Annexure-G

LICENCE TO POSSESS AND SELL MANUFACTURED FIREWORKS

(Quantity not exceeding 500 kilograms of crackers/ sparklers of Class-7,

Division-2, sub-division-I and 100 kilograms of manufactured fireworks of Class-7, Division-2, sub-division-II).

(Form LE-5, see also Rule 107 of Explosive Rules 2008 and article 5(a) to (f) of schedule IV)

LICENCE NO. _____

Fee Rs. _____

1. Licence is hereby granted to:
Name _____
Postal Address _____
City _____ District _____ State _____
Pin Code _____

Police Station _____ Railway Station/Steamer
Ghat _____
Phone _____ E-mail _____ Fax _____
2. Status of Licencee:
3. Licence is valid for following purpose:
4. Licence is valid for the following kinds and quantity of explosives:
(Name, description, Class, Division, sub-division, quantity at any one time.
5. The licenced premises shall conform to the following drawing(s):
Drawing No. _____ dated _____
Drawing No. _____ dated _____
Drawing No. _____ dated _____

6. The licenced premises are situated at following address:

Survey _____ Number _____ City _____
District _____ State _____
Pin Code _____ Police Station _____ Railway
Station/ Steamer Ghat _____ Phone _____ E-
Mail _____ Fax _____

7. The licenced premises consist of following facilities:

8. The licence is granted subject to the provision of Explosives Act, 1884 as amended from time to time and the Explosives Rules, 2008 framed there under and the conditions, and annexures.

(i) Drawings (showing site, constructional and other details) as stated in serial no. 5 above.

(ii) Conditions of this licence signed by the licensing authority.

9. This licence shall remain valid till: _____

This Licence is liable to be suspended or removed for any violation of the Act or Rules framed thereunder or the conditions of this licence as set forth under SET-X to Set-XV wherever applicable, referred to in Part 4 of schedule V or if the licenced premises are not found conforming to the description shown in the plans and annexure attached hereto.

Signature, Designation and seal of Licensing Authority
Dated the _____

Statutory Warning:- Mishandling and misuse of explosives shall constitute serious criminal offence under the law.

CONDITIONS FOR FIREWORKS LICENCE:

1) The fireworks shall be kept in a substantial brick stone or concrete building, made of non-flammable material, which is closed and secured so as to prevent unauthorized persons from having access thereto.

- 2) No oil burning lamps, gas lamps or naked lights shall be used in the shed/building or within the safety distance of the sheds/building for the purpose of lighting. Any electrical light, if used shall be fixed to the wall or ceiling and should not be suspended by flexible wire. Switches should be fixed rigidly.
- 3) The licensee and the employee shall be conversant with procedure to be taken during the emergency within the premises.
- 4) Free access to the licenced premises shall be given at all reasonable time to any inspecting or sampling officer and every facility shall be afforded to the officer for ascertaining that the provisions of the Act and the Rules and the conditions of this licence are duly observed.
- 5) If the licensing authority informs in writing, the holder of the licence to execute any repairs or to make any additions or alterations to the licenced premises or machinery, tools or apparatus or carry out recommendations which are in the opinion of such authority may pose unacceptable risk and so necessary for the safety of either on-site or off-site of the premises or persons, the holder of the licence shall execute the recommendations and report compliance within the period specified by such authority.
- 6) Accidents by fire or explosion and losses, shortage or theft or explosives shall be immediately reported to the nearest police station and the licensing authority and local office of the licensing authority.
- 7) The licensee shall purchase authorized fireworks as mentioned in the list of authorized explosives from a licenced factory or company for possession and sale from the shop.
- 8) Fireworks/colour/star matches containing chlorates shall be separated from other type of fireworks by intervening partition of such substance and character or by such intervening space, as well effectually prevent explosion or fire in the one communicating with other.
- 9) All sales of fireworks under this licence must be made in the premises described in the licence.
- 10) No fireworks containing chlorate except paper caps or amercers or colour match or fireworks approved by Chief Controller shall be kept in the premises.
- 11) The licensee shall keep records and accounts of all explosives in stock and of all sales in form below as the licensing authority may from time to time direct and shall exhibit his stock and his books and records

to any of the officers authorized under these rules, whenever such officer may call upon him to do so.

Date	Opening balance	Quantity of fireworks purchased	Name and licence number of the licencee from whom purchased	Quantity of fireworks sold	Closing balance

Signature of the NOC Issuing Officer (with seal)

Name:

Designation:

**OFFICE OF THE JOINT/ADDITIONAL COMMISSIONER OF POLICE:
LICENSING
POLICE STATION (1ST FLOOR) PS DEFENCE COLONY: DELHI.**

No _____/...../..... dated, New Delhi, the _____

To

Sh. _____

Subject: Regarding rejection of your application for grant of permanent fireworks, licence/NOC.

Sir,

With reference to your application dated _____ regarding
grant of permanent fireworks licence/NOC at
_____.

In this regard, it is intimated that your request could not be acceded to, on the following grounds:-

1. _____
2. _____
3. _____

In case, you are aggrieved/not satisfied with the above decision, you may appeal before the Special Commissioner of Police, Licensing, at Police Headquarters, Jai Singh Road, New Delhi within 30 days along with a fee of Rs. 200/- in cash or Demand Draft (The amount will be reimbursed in case the appeal is upheld by appellate authority).

Joint/Addl. Commissioner of Police,
Licensing Unit: Delhi.